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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **CAPTAIN G. SERRATO, in his individual and official capacities as Commander, Dublin Area, California Highway Patrol,** Defendant.	Case No. 4:26-cv-05953-ASK **PLAINTIFF'S OPPOSITION TO DEFENDANT'S MOTION TO DISMISS FIRST AMENDED COMPLAINT AND/OR MOTION TO STRIKE PORTIONS OF THE FIRST AMENDED COMPLAINT** Date: September 16, 2026 Time: 1:30 p.m. Judge: Mag. Ajay S. Krishnan Action Filed: June 17, 2026

Hearing Date: September 16, 2026, at 1:30 p.m., before Magistrate Judge Ajay S. Krishnan, United States District Court for the Northern District of California.

I. INTRODUCTION

This Court has already screened Plaintiff's complaint under 28 U.S.C. § 1915 and held it sufficient. Accepting the pleaded facts as true, the Court found "plausible inferences that CHP officers falsely imprisoned [Plaintiff] in November 2024 based on fabricated evidence" and that "Defendant Serrato retaliated against him by wrongfully denying his certification request." (Dkt. No. 5 at 4.) Critically, the Court also held: "While Defendant Serrato had discretion to certify the request, he did not have discretion to retaliate against Mr. Newanforbi." (Id.) Plaintiff accepts that

holding. He does not ask this Court to compel a Form I-918 Supplement B signature. He asks the Court to deny dismissal of claims that Serrato's April 20, 2026 denial was retaliatory and that the denial process failed constitutional and statutory minima.

Two judicial determinations already confirm that Plaintiff is not entitled to a forced certification. First, this Court expressly recognized Serrato's discretion to certify. (Dkt. No. 5 at 4.) Second, Judge Fickes denied Plaintiff's motion for judicial U-visa certification in Alameda Superior Court Case No. 26CV168913-confirming there is no freestanding right to compel a Form B signature on these facts. Plaintiff accepts both determinations for purposes of this opposition. Defendant's motion, however, treats discretion as a license to retaliate and as a free pass for a boilerplate denial. That is the line Dkt. No. 5 drew, and Defendant never grapples with it. He asks the Court to reverse itself at Rule 12(b)(6) on the same pleading the Court already found adequate.

Accordingly, this opposition leads with the First Amendment retaliation claim-the claim this Court already found plausible and the claim least affected by certification discretion. *Perry v. Sindermann*, 408 U.S. 593, 597 (1972); *Bd. of Cnty. Comm'rs v. Umbehr*, 518 U.S. 668, 674 (1996); *Ford v. City of Yakima*, 706 F.3d 1188, 1193 (9th Cir. 2013). The due-process claims are preserved as secondary theories: not as a demand that Serrato must certify, but as claims that California Penal Code section 679.10 constrains how a denial may be reached and explained. Under federal law, the decision whether to sign remains discretionary. *Perez Perez v. Wolf*, 943 F.3d 853, 863 (9th Cir. 2019). Section 679.10 nonetheless uses mandatory language, creates a rebuttable presumption of helpfulness, requires a written explanation for denial, mandates timely processing, and prohibits treating the absence of charges or prosecution as dispositive. Those process constraints-not a right to a compelled yes-are what the due-process claims put at issue.

Defendant also moves under Rule 12(f) to strike Plaintiff's prayers for declaratory relief, injunctive relief, attorney fees, and punitive damages. The Ninth Circuit has held that Rule 12(f)

does not authorize striking a claim for damages on the ground that it is not recoverable as a matter of law. *Whittlestone, Inc. v. Handi-Craft Co.*, 618 F.3d 970, 974-75 (9th Cir. 2010). Several of Defendant's grounds fail on that threshold alone.

Finally, Defendant leans on related-case history-including Judge Fickes's denial, Plaintiff's voluntary dismissals, and an Eastern District report and recommendation-to argue retaliation is implausible and leave to amend futile. Even accepting those facts as true, they do not defeat this FAC. A different certifying official's decision on a different request does not determine whether Captain Serrato's April 20, 2026 denial-issued while supervising the accused officers and while those officers were defendants in pending civil suits-was free of retaliatory motive. This is the only action asserting Section 1983 claims against Defendant Serrato in his individual capacity for that denial. And this Court has already held those claims plausible.

1 Plaintiff also notes that the motion was served on August 26, 2026 and noticed for hearing on September 16, 2026-21 days' notice. Civil L.R. 7-2(a) requires 35 days. Plaintiff opposes on the merits without waiving any objection to the deficient notice period. The opposition deadline under Civil L.R. 7-3(a) is September 2, 2026.

II. STANDARD OF REVIEW

A motion to dismiss under Rule 12(b)(6) tests the legal sufficiency of the complaint. *Navarro v. Block*, 250 F.3d 729, 732 (9th Cir. 2001). To survive, a complaint must contain "sufficient factual matter, accepted as true, to 'state a claim to relief that is plausible on its face.'" *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). The court must "accept all factual allegations in the complaint as true and construe the pleadings in the light most favorable to the nonmoving party." *Knievel v. ESPN*, 393 F.3d 1068, 1072 (9th Cir. 2005). Where competing inferences may be drawn from the same set of facts, the complaint survives-"even if it strikes a savvy judge that actual proof of those facts is improbable." *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 556 (2007).

Pro se pleadings are held "to less stringent standards than formal pleadings drafted by lawyers" and must be construed liberally. *Erickson v. Pardus*, 551 U.S. 89, 94 (2007); *Hebbe v. Pliler*, 627 F.3d 338, 342 (9th Cir. 2010). Dismissal with prejudice is warranted only when "it is absolutely clear that the deficiencies of the complaint could not be cured by amendment." *Lopez v. Smith*, 203 F.3d 1122, 1130-31 (9th Cir. 2000) (en banc).

III. ARGUMENT

A. Defendant's Rule 12(f) Motions to Strike Are Procedurally Improper Under Whittlestone.

Defendant moves under Rule 12(f) to strike Plaintiff's fourth cause of action and prayers for declaratory relief, injunctive relief, attorney fees, and punitive damages. (MTD at 12-14.) Each motion fails at the threshold.

In *Whittlestone, Inc. v. Handi-Craft Co.*, 618 F.3d 970, 974-75 (9th Cir. 2010), the Ninth Circuit held that Rule 12(f) authorizes striking only "redundant, immaterial, impertinent, or scandalous" matter, and that a claim for damages "cannot be stricken under Rule 12(f) on the ground that such damages are precluded as a matter of law." Using Rule 12(f) to test the legal sufficiency of a prayer for relief "creates a result that is the functional equivalent of a Rule 12(b)(6) motion to dismiss," improperly bypassing Rule 12(b)(6)'s procedural protections. Id. at 974. Defendant's reliance on *Bureerong v. Uvawas*, 922 F. Supp. 1450 (C.D. Cal. 1996), and *Wilkerson v. Butler*, 229 F.R.D. 166 (E.D. Cal. 2005), is misplaced. Both predate Whittlestone and are no longer good law on this point in the Ninth Circuit.

To the extent the Court construes these arguments as part of the Rule 12(b)(6) motion, they fail on the merits as well.

Punitive damages. The FAC alleges Defendant (a) denied certification despite possessing

the dashcam recording and Detention Certificate proving fabricated evidence, (b) issued a boilerplate denial engaging with no evidence, and (c) did so amid a concrete institutional incentive to deny while supervising the accused officers. (FAC ¶¶ 37, 49.) These allegations plausibly state "reckless or callous indifference to the federally protected rights of others." *Smith v. Wade*, 461 U.S. 30, 56 (1983). That the FAC disclaims relitigating the officers' underlying tort liability does not erase Serrato's own conduct: refusing to engage with evidence in his own custody when deciding a certification request under section 679.10.

Injunctive relief. The FAC alleges an ongoing deprivation of access to the U-visa process, continuing immigration uncertainty, inability to obtain employment authorization and removal protections, and dignitary injury from the unresolved denial. (FAC ¶¶ 39, 44, 51, Prayer ¶¶ E-F.) Those allegations speak directly to Winter's irreparable-harm and balance-of-equities inquiries. *Winter v. Nat. Res. Def. Council, Inc.*, 555 U.S. 7, 20 (2008). Whether Plaintiff ultimately obtains an injunction is a merits question; it is not a basis to strike the prayer at the pleading stage.

Attorney fees. Plaintiff does not contend he may recover fees for his own pro se work under *Kay v. Ehrler*, 499 U.S. 432, 438 (1991). The prayer should nonetheless be preserved as to any counsel retained or appointed during this litigation-a prospect this Court specifically facilitated by referring Plaintiff to the Federal Pro Bono Project. (Dkt. No. 5 at 5.) Striking the prayer now would gratuitously prejudice that contingency.

B. The First Amendment Retaliation Claim Is Well-Pleaded.

Defendant's second ground in the Notice is that retaliation fails "because Plaintiff was not entitled to U-visa certification as a matter of law." (MTD at 2.) That gets the doctrine backwards-and ignores this Court's screening holding that Serrato's certification discretion does not include discretion to retaliate. (Dkt. No. 5 at 4.) The Supreme Court has held that government "may not deny a benefit to a person on a basis that infringes his constitutionally protected

interests-even though he has no 'right' to a valuable governmental benefit." *Perry v. Sindermann*, 408 U.S. 593, 597 (1972); see also *Bd. of Cnty. Comm'rs v. Umbehr*, 518 U.S. 668, 674 (1996). Discretionary benefits are precisely where retaliation doctrine operates. Whether Plaintiff had a freestanding "right" to certification is irrelevant to whether Defendant denied it in retaliation for protected activity.

To state a First Amendment retaliation claim, Plaintiff must allege that he engaged in protected activity, that Defendant took adverse action that would chill a person of ordinary firmness, and that Defendant's desire to chill that speech was a but-for cause of the adverse action. *Ford v. City of Yakima*, 706 F.3d 1188, 1193 (9th Cir. 2013). At the pleading stage, Plaintiff need only allege facts making retaliatory but-for causation plausible-not prove it, and not disprove every innocent explanation. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009); *Capp v. Cnty. of San Diego*, 940 F.3d 1046, 1055 (9th Cir. 2019). The Mt. Healthy burden-shift-under which the defendant may show it would have taken the same action anyway-is an affirmative defense for summary judgment or trial, not a pleading barrier. *Mt. Healthy City Sch. Dist. Bd. of Educ. v. Doyle*, 429 U.S. 274, 287 (1977).

The FAC more than satisfies *Ford*'s but-for standard through five mutually reinforcing allegations:

Documented knowledge. Defendant's own March 26, 2026 letter expressly acknowledges Plaintiff's citizen complaint and assigns an investigator. (FAC ¶ 48.) This is a contemporaneous written admission-not an inference. Defendant's response-that assigning an investigator is proper-misses the point. The letter proves knowledge of protected activity before the denial. Knowledge plus adverse action in close proximity is classic retaliation circumstantial evidence.

Tight temporal proximity. POST forwarded the complaint on March 23. Serrato assigned an investigator on March 26. Plaintiff submitted the certification request on April 9. Serrato

denied it on April 20-eleven days later-without substantive analysis. (FAC ¶ 49(b).) *Pratt v. Rowland*, 65 F.3d 802, 808 (9th Cir. 1995). Defendant's "prompt action reflects responsiveness" theory is a competing inference. Competing inferences must be resolved in Plaintiff's favor at this stage. *Twombly*, 550 U.S. at 556.

Concrete institutional incentive. Certifying the Supplement B would have required Serrato to attest under penalty of perjury that his subordinate officers committed qualifying criminal activity-while CHP was defending those same officers in two pending civil lawsuits. (FAC ¶ 49(c).) That incentive is not "Plaintiff's decision to sue"; it is Serrato's institutional interest in avoiding an official admission that would undermine those defenses.

Pretextual reasoning. The denial offered no engagement with any evidence, identified no deficient statutory element, and applied no statutory standard. The absence of any evidence-based justification means the denial would not have occurred but for retaliatory animus: on this pleaded record, no legitimate, non-retaliatory ground for the boilerplate refusal appears. *Capp*, 940 F.3d at 1055; *Nieves v. Bartlett*, 587 U.S. 391, 406 (2019). (FAC ¶ 49(d).)

Structural conflict. Defendant simultaneously occupied two incompatible roles: supervisor of the accused officers and certifier of whether they committed qualifying crimes. (FAC ¶ 49(e).) *Withrow v. Larkin*, 421 U.S. 35, 47 (1975). Defendant's observation that Plaintiff "could have" sought certification from another entity (MTD at 11) confirms rather than cures the conflict: Plaintiff needed certification from the detecting agency that held the dashcam and Detention Certificate, and that agency's commander was structurally compromised.

This Court found these allegations plausible at screening: "While Defendant Serrato had discretion to certify the request, he did not have discretion to retaliate against Mr. Newanforbi." (Dkt. No. 5 at 4.) Defendant's motion simply asserts that each factor in isolation has an innocent explanation. That is a summary-judgment argument, not a Rule 12(b)(6) dismissal ground.

C. The Procedural Due Process Claim Is Well-Pleaded Because the Denial Failed to Satisfy the Statu

Even accepting Serrato's substantive discretion to deny certification, the manner of denial must still satisfy the process section 679.10 requires. Defendant argues the denial letter "lays out the reason behind the denial" and that "is all the procedural due process the law requires." (MTD at 9.) The FAC alleges otherwise.

Section 679.10, subdivision (i)(2), requires "a written explanation for the denial." Where the denial rests on non-cooperation, the explanation must include "specific details of any reasonable requests for cooperation and a detailed description of how the victim refused to cooperate." The first sentence is a stand-alone command applicable to every denial; the second supplements it for cooperation-based denials. To read the second as the only requirement would mean an agency could deny certification on the most common ground-a finding the applicant was not a crime victim-with no meaningful explanation at all. That is what AB 1261 was enacted to prevent. The Legislative Counsel's Digest describes the written-explanation duty without qualification: a certifying entity that does not certify "shall provide a written explanation for the denial of the certification." (Stats. 2023, ch. 679.)

The FAC specifically alleges the five-sentence boilerplate was legally deficient because it: (a) did not address the dashcam evidence; (b) did not address the section 851.6 Detention Certificate; (c) did not identify which statutory element was unsatisfied; (d) did not acknowledge the rebuttable presumption of helpfulness; and (e) did not provide specific reasons as required by statute. (FAC ¶¶ 31, 37, 43.) A conclusory assertion that the incident "does not meet the standard"-without identifying the standard applied, the element found wanting, or any engagement with the agency's own exculpatory records-is not a "written explanation" in any meaningful sense. It is the form of denial AB 1261 was written to abolish.

Under *Mathews v. Eldridge*, 424 U.S. 319, 335 (1976), the adequacy of process depends on the private interest at stake, the risk of erroneous deprivation, and the governmental interest. Here, the private interest is substantial: U-visa certification is the sole gateway to lawful immigration status and work authorization. The risk of erroneous deprivation is extreme: a five-sentence boilerplate engaging with no evidence. And the governmental interest in denying certification is minimal: the Supplement B is a factual certification, not a visa approval. (FAC ¶ 38.) These allegations state a plausible procedural due process claim. *Goldberg v. Kelly*, 397 U.S. 254, 262 (1970); *Bd. of Regents v. Roth*, 408 U.S. 564, 577 (1972).

D. The Substantive Due Process Claim Is Well-Pleaded Because Section 679.10 Constrains Arbitrar

Plaintiff does not assert a federal right to U-visa certification. Nor does he argue that section 679.10 eliminates all discretion. He accepts this Court's holding that Serrato had discretion to certify. (Dkt. No. 5 at 4.) The claim is narrower: where California has enacted a statute that (a) uses mandatory language ("shall"), (b) creates a rebuttable presumption of helpfulness, (c) requires specific written reasons for denial, (d) mandates processing within 30 days, and (e) expressly provides that investigation, charges, prosecution, or conviction are not required for certification, a certifying official who ignores those constraints and issues a boilerplate denial without engaging with the evidence in his own custody has acted arbitrarily.

Under federal law, the decision to sign a certification is discretionary. *Perez Perez v. Wolf*, 943 F.3d 853, 863 (9th Cir. 2019). This Court quoted that principle at screening and still held the complaint sufficient. (Dkt. No. 5 at 3-4.) Federal discretion does not erase California's subsequent statutory constraints. Defendant's reliance on *Catholic Charities CYO v. Chertoff*, 622 F. Supp. 2d 865 (N.D. Cal. 2008), is misplaced: that case addressed the federal statute-which lacked mandatory language-and was decided seven years before section 679.10 and sixteen years before AB 1261.

Shanks v. Dressel, 540 F.3d 1082, 1087 (9th Cir. 2008), establishes that where a statute constrains official discretion with ascertainable standards, arbitrary refusal to apply those standards violates due process. The question is not whether Defendant had discretion to deny certification. The question is whether he had discretion to deny it arbitrarily, without applying the statutory standards, without engaging with the evidence, and without providing the specific reasons the statute requires. He did not.

Defendant's "civil tort" label rests on the absence of criminal charges. Section 679.10, subdivision (k)(1), expressly provides that investigation, charges, prosecution, or conviction "are not required" for certification. The FAC identifies enumerated qualifying criminal activity under 8 U.S.C. § 1101(a)(15)(U)(iii) and section 679.10(c)-false imprisonment, unlawful criminal restraint, felonious assault, perjury, and obstruction of justice. (FAC ¶ 21.) This Court already accepted those allegations as supporting a plausible inference of false imprisonment based on fabricated evidence. (Dkt. No. 5 at 4.) And Defendant's attack on the helpfulness presumption inverts subdivision (h): if no assistance was requested, the victim has not "refused or failed to provide" it. The FAC further alleges affirmative cooperation through complaints and production of the agency's own records. (FAC ¶¶ 23, 47.)

E. Declaratory and Injunctive Relief Are Proper as Forward-Looking Official-Capacity Remedies.

Plaintiff does not oppose treating the fourth cause of action as a prayer for remedy rather than a standalone cause of action. Declaratory relief is properly characterized as a form of relief. The relief sought, however, remains proper and should not be stricken. Plaintiff does not seek an order compelling Defendant to sign the Supplement B. Consistent with this Court's recognition of certification discretion, Plaintiff seeks vacatur of the April 20, 2026 denial and a remand for a new decision that applies the correct statutory standards, engages with the evidence, and is free of retaliatory motive-leaving Defendant's substantive certification discretion intact while correcting the constitutional defects.

The FAC seeks prospective relief against Defendant in his official capacity: a declaration that the April 20, 2026 denial violated constitutional standards and that Plaintiff is entitled to a new certification decision applying the correct standards to the evidence in CHP's possession, together with corresponding injunctive relief. (FAC ¶¶ 53-54, Prayer ¶¶ E-F.) To the extent any prayer language could be read more broadly, Plaintiff clarifies that the operative request on this motion is process correction-vacatur and redo-not a directed Form B signature. That is prospective relief authorized by *Ex parte Young*, 209 U.S. 123 (1908). It is not duplicative of the damages claims against Defendant in his individual capacity.

Defendant's authorities involve plaintiffs seeking declarations about completed foreclosures or other purely past wrongs with no forward-looking component. (MTD at 12.) Here an actual controversy remains live: Plaintiff's certification remains denied; he still needs a lawful certification decision to pursue U nonimmigrant status; and the parties dispute whether the April 20 denial complied with constitutional and statutory standards. A new decision on a correct legal standard is forward-looking relief, not a retrospective damages substitute.

F. Even Accepting Defendant's Related-Case Narrative as True, It Does Not Defeat the FAC.

Defendant argues that Judge Fickes's denial of Plaintiff's judicial U-visa certification motion in Case No. 26CV168913, Plaintiff's voluntary dismissals of earlier actions, and an Eastern District report and recommendation show that retaliation is implausible and that leave to amend would be futile. (MTD at 11, 16-17.) Plaintiff accepts those procedural facts for purposes of this opposition. They still do not warrant dismissal.

1. Extrinsic Materials Are Improper on a Bare Rule 12(b)(6) Record.

On a Rule 12(b)(6) motion, the court generally may not consider materials outside the pleadings. *Lee v. City of Los Angeles*, 250 F.3d 668, 688-89 (9th Cir. 2001). Judicial notice may reach an order's existence but not the truth of disputed matters recited within it, and may not be used to supply missing elements or to resolve competing inferences against the plaintiff. *Khoja v. Orexigen Therapeutics, Inc.*, 899 F.3d 988, 998-1003 (9th Cir. 2018). Defendant submits no request for judicial notice, no declaration, and no exhibits. Even if the Court takes notice that Judge Fickes denied a certification motion and that other cases were dismissed, those facts do not establish-much less conclusively establish-that Serrato's April 20 denial was lawful or non-retaliatory. What Defendant actually asks is that the Court draw adverse inferences about Plaintiff's credibility and litigation motives from materials the Court cannot test on this record. That is the functional equivalent of a credibility determination-exactly what Rule 12(b)(6) forbids.

2. Judge Fickes's Denial Does Not Resolve This Case.

Accepting that Judge Fickes denied Plaintiff's motion for judicial U-visa certification on June 18, 2026, that denial does not defeat the FAC for at least four independent reasons.

First, different certifying official. Section 679.10 and 8 C.F.R. § 214.14(a)(2) authorize multiple categories of certifying officials, including judges and law-enforcement supervisors. Judge Fickes's decision concerned whether a superior-court judge should certify Form I-918 Supplement B in a stayed civil tort action. This case concerns whether Captain Serrato-Commander of the CHP Dublin Area, supervisor of the accused officers, and the official who signed the April 20, 2026 denial-violated Plaintiff's constitutional rights in performing that agency certification function. One certifying official's denial does not immunize another's allegedly retaliatory or arbitrary denial.

Second, different legal question. The Fickes motion asked a state judge to issue an affirmative certification. This action asks whether Serrato's existing denial was unconstitutional-because it was motivated by retaliation for protected petitioning and because the denial process ignored statutory explanation and evidence-engagement requirements. A "no" on judicial certification is not a "yes" on the lawfulness of Serrato's motive or process. Even if Judge Fickes's denial was substantively correct, that would not immunize Serrato's allegedly retaliatory or procedurally defective denial. The constitutional violation is in the how, not just the what.

Third, different record posture and conflict. Serrato decided the request while personally supervising the accused officers, after acknowledging Plaintiff's POST/citizen complaint, and while those officers were defendants in pending civil suits. (FAC ¶¶ 48-49.) Judge Fickes did not occupy that structural conflict. The retaliation and bias allegations that this Court found plausible at screening are specific to Serrato.

Fourth, no preclusion showing. Defendant has not pleaded or briefed claim preclusion, issue preclusion, or Rooker-Feldman. He offers the Fickes denial as atmosphere for a futility / "serial litigation" narrative. Atmosphere is not a Rule 12(b)(6) defense. And Defendant cannot use another forum's certification denial to contradict this Court's screening determination that false imprisonment based on fabricated evidence is plausibly pleaded qualifying criminal activity here. (Dkt. No. 5 at 4.)

3. The Related Actions Are Not Duplicative of This One.

As the FAC discloses, the related actions involve different defendants, different legal theories, and different forms of relief. (FAC ¶¶ 11-12.) The Eastern District case concerned Fourth Amendment claims against the arresting officers. The Alameda tort case concerned false imprisonment, battery, and Bane Act theories against those officers and the State. The Alameda

writ case (Matter 20) seeks state-law mandamus against CHP in its official capacity under Code of Civil Procedure section 1085. This case-the only one asserting Section 1983 damages and *Ex parte Young* relief against Defendant Serrato for his certification denial-is not duplicative. Voluntary dismissals without prejudice of other dockets do not adjudicate the merits of these claims.

G. Qualified Immunity Does Not Apply.

As a threshold matter, qualified immunity does not reach Plaintiff's official-capacity claims for prospective injunctive and declaratory relief. Defendant's own notice limits qualified immunity to his individual capacity. (MTD at 2, 14.) Plaintiff's *Ex parte Young* claims survive regardless of how the qualified-immunity question is resolved.

As to the individual-capacity claims, qualified immunity protects officials "from liability for civil damages insofar as their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known." *Pearson v. Callahan*, 555 U.S. 223, 231 (2009). Dismissal on qualified-immunity grounds at the 12(b)(6) stage is inappropriate "unless the court can determine from the complaint alone that qualified immunity applies." *Keates v. Koile*, 883 F.3d 1228, 1235 (9th Cir. 2018). It cannot do so here.

1. Defendant Violated Constitutional Rights.

As set forth above, the FAC adequately alleges violations of substantive and procedural due process and First Amendment retaliation. This Court has already found these allegations sufficient: the complaint "supports the plausible inferences that CHP officers falsely imprisoned him in November 2024 based on fabricated evidence" and that "Defendant Serrato retaliated against him by wrongfully denying his certification request." (Dkt. No. 5 at 4.)

2. The Unlawfulness Was Clearly Established.

The clearly established law is clearest on retaliation-and that is enough to defeat qualified immunity on the lead claim.

First, the right to be free from First Amendment retaliation is clearly established. *Borough of Duryea v. Guarnieri*, 564 U.S. 379, 387 (2011); *Hartman v. Moore*, 547 U.S. 250, 256 (2006). Defendant's own authority confirms this: *Ford v. City of Yakima*, 706 F.3d at 1193, establishes the right to be free from retaliation in the very case Defendant cites for the elements of the claim. *Capp*, 940 F.3d at 1055, reversed dismissal of a retaliation claim on analogous pleading of retaliatory motive. *Wesby*'s caution against defining clearly established law at too high a level of generality, 583 U.S. at 64, does not require a prior case about U-visa certification denials; it requires that the unlawfulness follow from established principles. Retaliating for protected petitioning by denying a statutory benefit within the official's control is not a close call-especially after this Court stated that Serrato "did not have discretion to retaliate." (Dkt. No. 5 at 4.)

Second, as to the secondary due-process theories, *Shanks v. Dressel*, 540 F.3d 1082, 1087 (9th Cir. 2008), establishes the right to non-arbitrary decision-making by state officials exercising constrained statutory duties. Qualified immunity does not require factual identity; it requires fair notice at an appropriate level of generality. *Hope v. Pelzer*, 536 U.S. 730, 741 (2002). And section 679.10's specific written-explanation and non-dispositive-absence-of-charges requirements gave Defendant fair notice that a boilerplate denial ignoring the agency's own evidence would violate those constraints.

H. If Any Claim Is Dismissed, Leave to Amend Must Be Granted.

Defendant argues leave to amend should be denied because Plaintiff has "substantial experience with the legal process," has already amended once, and has pursued related litigation.

(MTD at 16-17.) The standard does not turn on litigation history or amendment count; it turns on whether amendment would be futile. "[A] pro se litigant must be given leave to amend his or her complaint unless it is absolutely clear that the deficiencies of the complaint could not be cured by amendment." *Garity v. APWU Nat'l Lab. Org.*, 828 F.3d 848, 854 (9th Cir. 2016). This Court granted leave to file the First Amended Complaint. A single prior amendment does not establish futility; the question is whether the deficiencies could be cured, not how many times the complaint has been amended. Defendant has not demonstrated futility.

Even accepting Defendant's related-case narrative in full, it does not show futility. The Eastern District report and recommendation addressed different claims against different defendants and never became a final judgment-the action was dismissed without prejudice. Judge Fickes's denial of a judicial certification motion does not adjudicate Serrato's individual-capacity liability for a retaliatory or arbitrary agency denial. The pending state writ petition seeks mandamus against CHP under state law, not Section 1983 damages against Serrato. And this Court has already held the operative theory here plausible. (Dkt. No. 5 at 4.)

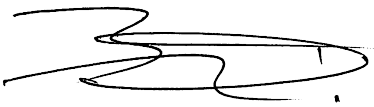
To the extent Defendant quarrels with the FAC's illustrative California Penal Code cross-references for the enumerated federal qualifying crimes (FAC ¶ 21), any such pleading gap is curable by amendment and is not a basis for dismissal with prejudice. The federal categories-false imprisonment, unlawful criminal restraint, felonious assault, perjury, and obstruction of justice-are pleaded under 8 U.S.C. § 1101(a)(15)(U)(iii) and were accepted as plausible at screening. (Dkt. No. 5 at 4.) Denial of leave to amend based on characterizations of other litigation-particularly where this Court has already screened these claims as sufficient-would be an abuse of discretion.

IV. CONCLUSION

Plaintiff respectfully requests that this Court: (1) deny Defendant's motion to dismiss in its entirety, with particular emphasis on the First Amendment retaliation claim already found plausible at screening; (2) deny Defendant's motions to strike; (3) permit Plaintiff to treat the fourth cause of action as a prayer for declaratory and injunctive process-correction relief rather than a standalone claim or a compel-certification order; and (4) in the alternative, grant leave to amend should the Court find any deficiency in the current pleading.

Dated: August 27, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per